

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

JUDICIAL CIRCUIT

IN THE MATTER OF THE EXPUNGEMENT OF RECORDS RELATED TO:	Case No.: _____ CRI No.: _____
_____ (Name of Applicant for Expungement) Petitioner.	ORDER ON MOTION FOR EXPUNGEMENT ☐ Granted ☐ Denied

The above-entitled matter came before this Court on the Petitioner's Motion for Expungement on the _____ day of _____, 20____.

The Court having reviewed the Petitioner's Motion for Expungement and all evidence presented on said motion, being fully advised in the premises, and otherwise for good cause shown,

FINDS that the Court has jurisdiction over the parties and the subject matter herein; and further

FINDS that the Court is satisfied by clear and convincing evidence that the ends of justice and the best interests of the public as well as the Petitioner or the arrested person will be served by the entry of an order of expungement.

WHEREFORE, IT IS HEREBY ORDERED, pursuant to SDCL § 23A-3-31, that all official records related to the above referenced case, other than the non-public records to be retained by the Division of Criminal Investigation, be sealed along with all records relating to the Petitioner's arrest, detention, indictment, information, trial, and disposition.

Dated this _____ day of _____, 20____.

BY THE COURT:

ATTEST:

Circuit Court Judge

Clerk of Court

By: _____

Deputy Clerk of Court